

jore pœna affectus, quam legibus statut' est, non est infamis. Pœna gravior ultra legem posita æstimationem conservat. Confessus in jure pro judicâto habetur, cum quodammodo sua sententia damnatur. Cum consensu sponte mitius est agendum.

In hac curia non agitur de delictis ordinariis, ne dignitas hujus curiæ vilesceret.

Quicquid judicis auctoritati subjicitur, novitati non subjicitur.

[67]

C A P. VI.

A Court for Redresse of Delayes of Judgements in the Kings great Courts.

24 E. 3. cap. 5.
stat. 1.
Rot. parl. 2 R 2.
nu. 63. confirm-
ed by parliament.

Judgements de-
layed.

* Nota, by good
advice of the
chancellour,
treasurer, and
justices.

Good accord.

Vide Regist.
fo. 124. b.
Rex Johanni de
B. Militi, &c.

THIS court is raised by the statute of 14 E. 3. which followeth in these words.

Item, Because divers mischieves have happened of that, that in divers places, as well in the chancery, as in the kings bench, the common bench, and in the exchequer, before the justices assigned, and other justices to hear and determine deputed, the judgements have been delayed, sometimes by difficulty, sometimes by divers opinions of the judges, and sometime for some other cause: it is assented, established, and accorded, that from henceforth at every parliament shall be chosen a prelate, two earls, and two barons, which shall have commission and power of the king to heare by petition delivered unto them the complaints of those that will complaine them of such delayes and grievances made, and they shall have power to do come before them at Westminster, or elsewhere, where the places or any of them shall be, the tenor of records and proceses of such judgements so delayed, and to cause the same justices to come before them, which shall be then present to hear their cause and reasons of such delayes: which cause and reason so heard by * good advice of themselves, the chancelor, treasurer, the justices of the one bench, and of the other, and other of the kings counsell, as many and such as shall seem convenient, shall proceed to take a good accord, and make a good judgement: and according to the same accord so taken, the tenor of the same record, together with the judgement which shall be accorded, shall be remaunded before the justices, before whom the plea did depend; and that they shall give judgement according to the same record: and in case it seemeth to them that the difficulty be so great, that it may not well be determined without assent of the parliament, that the said tenor or tenors shall be brought by the said prelate, earles, and barons in the next parliament